

TOKEN SALE TERMS AND CONDITIONS

DISCLOSURE STATEMENT

RADIX TOKENS (JERSEY) LIMITED is a company incorporated in Jersey (registration number: 132555), whose registered office is at: First Floor La Chasse Chambers Ten La Chasse Jersey. **RADIX TOKENS (JERSEY) LIMITED** will sell **ERC20 RADIX TOKENS** and procure the delivery of these tokens to a wallet designated by you.

The token that you will acquire is an ERC20 compliant token on the ETHEREUM BLOCKCHAIN, (**ERC20 RADIX TOKEN**). The ERC20 RADIX TOKEN will have no function other than it will become exchangeable for a **RADIX (XRD) TOKEN** when the RADIX LEDGER is instantiated.

When fully incorporated **RADIX TOKENS (JERSEY) LIMITED** will facilitate the allocation of the **ERC20 RADIX TOKEN** to a wallet identified by you.

When distributed the **RADIX (XRD) TOKEN** will be an unregulated cryptographic artefact (utility token) which will enable you to pay **RADIX TRANSACTION FEES** on the **RADIX LEDGER** to execute **RADIX TRANSACTIONS** and to participate in the RADIX LEDGER as a NODE RUNNER (operating a STAKING NODE).

YOU WARRANT THAT YOU ARE NOT ACQUIRING ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS FOR THE PURPOSE OF SPECULATIVE INVESTMENT AND WILL NOT USE ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS TO FACILITATE ANY UNLAWFUL ACTIVITY

Neither the sale, purchase, use nor operation of the ERC20 RADIX TOKEN are regulated by any central bank or other regulatory authority in any jurisdiction or territory.

No warranty is given that any action has been or will be taken by **RADIX TOKENS (JERSEY) LIMITED** or its AFFILIATES to seek regulatory approval for the sale, use or transfer of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS under the laws, regulatory requirements, or rules of any jurisdiction.

You acknowledge, warrant and represent that you have undertaken all prudent inquiries, secured all appropriate advice, have sufficient knowledge and experience in financial matters and non-financial assets and a sufficient understanding of cryptographic tokens digital assets, distributed/digital ledger technology/software systems to be qualified to evaluate the risks and merits of the purchase of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, including but not limited to the matters set forth in the TERMS AND CONDITIONS OF PURCHASE.

You warrant that the assets you use to purchase or otherwise acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS do not constitute a significant percentage of your overall assets or income and that any loss of value of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS will not prejudice your welfare and you are able to bear any and all risks relating to the purchase, use and holding of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.

You acknowledge that to the extent that there may be a market for the sale and purchase of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, any price or value of such tokens may be volatile (whether in private sales or on EXCHANGES and other markets).

You accept that there are significant risks associated with the acquisition, holding and use of cryptographic tokens which may include:

- (a) extreme fluctuations in price over short periods of time on a regular basis - a CONTRIBUTOR of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS should be prepared to expect fluctuations both down and up, in the price of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS denominated in Bitcoin ("BTC") or United States dollars ("USD") or other fiat money of other jurisdictions;

- (b) fluctuations due to market forces including, inter alia, the available supply and demand;
- (c) changes in legal or regulatory requirements and limitations on the rights of citizens of certain countries to open accounts at exchanges or to hold, exchange or use cryptographic tokens;
- (d) variation in the volume of market transaction (liquidity) of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS from time to time and from one jurisdiction to another;
- (e) action by regulatory bodies, governments and law-enforcement agencies in diverse territories of the use, sale, and purchase of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS (or other cryptographic tokens);
- (f) diverse events which might discourage, impede, or limit the use or exchange of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and/or the development of the RADIX LEDGER; and
- (g) the development of “forked” or alternative unofficial RADIX LEDGERS, which utilize the same base open source code and open source protocol underlying the RADIX LEDGER.

1. INDEMNITY

You hereby indemnify and hold safe RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES against and in respect of any damage, loss, loss of opportunity, loss of profit, anticipated savings or any special, incidental, or consequential damages arising from any use and misuse of the ERC20 RADIX TOKEN and/or the RADIX (XRD) TOKEN in any way connected to the possession, purchase, acquisition, loan, offer as security, staking, sale, use, exchange or transmission of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS by you or any successor in title and any third party to whom you transfer the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS (by sale disposition or transfer or otherwise).

As a RADIX TOKEN HOLDER, you must take great care to write down, or otherwise securely store your PRIVATE KEY to ensure access to your wallet.

Loss of your PRIVATE KEY will CAUSE PERMANENT LOSS of access to your ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.

TERMS AND CONDITIONS

FOR THE PURCHASE AND USE OF ERC20 RADIX TOKENS

These Terms and Conditions relate to the distribution by RADIX TOKENS (JERSEY) LIMITED and the acquisition by you of ERC20 RADIX TOKENS and any RADIX TOKENS which are received by you or your successors in title.

**PLEASE READ THESE TERMS CAREFULLY THROUGH TO THE END
IF YOU DO NOT AGREE TO THESE TERMS OF SALE,
DO NOT PARTICIPATE IN THE TOKEN SALE.**

These terms and conditions are issued by RADIX TOKENS (JERSEY) LIMITED, (a company incorporated in Jersey with registration number 132555).

You warrant you are acquiring the ERC20 RADIX TOKENS for the purpose of exchanging these for RADIX (XRD) TOKENS in order to **facilitate transactions on the RADIX LEDGER** and/or to obtain access to the functionality that will be provided by the **RADIX LEDGER** and/or to facilitate your participation on the RADIX LEDGER as a NODE RUNNER, (STAKING NODE).

ACTIVATION OF FUNCTIONALITY: the use of RADIX (XRD) TOKENS will facilitate the activation of certain functions within the RADIX LEDGER - one of which is to act as a value exchange mechanism and another for the payment of TRANSACTION FEES.

VALUE OF TOKENS: RADIX TOKENS (JERSEY) LIMITED makes no comment, representation or provides any assurance as to the value of any tokens which are acquired, used or transmitted across the RADIX LEDGER by you or on your behalf or by any person who acquires possession of such tokens from you.

ECONOMIC VALUE OF TOKENS: RADIX TOKENS (JERSEY) LIMITED expresses no view, makes no representation and does not provide any assurance as to the present or future economic value of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS outside of the RADIX LEDGER. It is possible that such tokens will have no economic value at all.

NO SPECULATIVE INVESTMENT: you warrant that you are not acquiring ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS with a view to holding ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS as a speculative investment. You warrant that your motivation for acquiring ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and entering into this AGREEMENT is to facilitate the development of the RADIX LEDGER through participation in the consensus validation protocol and operations on the RADIX LEDGER.

PASSIVE PARTICIPATION: you acknowledge that if you neither use the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS to perform a role as a NODE RUNNER (Staking Node) within the RADIX LEDGER, nor build on the RADIX LEDGER you may see your holdings of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS decline as a percentage of the entire population of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS over time as more ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS come into existence as a result of network emission, network subsidy payments, and future token sales. Over time, this may result in the substantial dilution of a passive participant's token holdings.

LOCKED TOKENS: Where you are acquiring locked tokens, the unlocking of those tokens is linked to the price oracle for the tokens, it is possible that the market price of the tokens will not increase to a point which unlocks your tokens.

ACTIVE PARTICIPATION: involves a holder of tokens performing at least one of the following roles within the RADIX LEDGER: NODE RUNNERS (Staking Nodes) or engaging in operations on the RADIX LEDGER.

TRADING SUPPORT: Neither RADIX TOKENS (JERSEY) LIMITED nor any AFFILIATE intends to participate in or otherwise support trading of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.

SECONDARY MARKET: the nature and extent of any secondary market for ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS cannot be predicted.

LIQUIDITY: you acknowledge that when acquiring ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, you have considered that lack of liquidity in ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS is a risk.

PERFORMANCE OF THE RADIX LEDGER: the decentralised nature of the operation of the RADIX LEDGER means that the greater the level of participation in the RADIX LEDGER by holders of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, the better the RADIX LEDGER will perform in terms of stability, security, and robustness of the RADIX PROTOCOL.

2. YOU WARRANT THAT:

- 2.1 You have read you have understood and accepted the content of all up to date versions of:
- (a) These Terms and Conditions;
 - (b) White Paper and the Legal Considerations, Risks and Disclaimer that can be found on the following link: https://www.radixdlt.com/#white_papers;
 - (c) INFORMATION MEMORANDUM which is set out at the foot of these Terms and Conditions including THE RISK WARNINGS set out therein; and
 - (d) RADIX PRIVACY POLICY attached hereto; and
- 2.2 You have undertaken all relevant due diligence, made such enquiries as to the use function, value, law and taxation of cryptographic tokens and taken independent legal advice before accepting these Terms and Conditions.

3. INTERPRETATION

A reference to a statute or statutory provision is a reference to it as amended, extended, or re-enacted from time to time.

A reference to a statute or statutory provision shall include all subordinate legislation made from time to time under that statute or statutory provision.

A reference to writing or written includes fax and email.

Any words following the terms: including for example, or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase, or term preceding those terms.

The following definitions and rules of interpretation shall apply to these Terms and Conditions and to the use holding and transmission of **ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS**.

The paragraph headings in these Terms and Conditions are for convenience only and shall not affect the interpretation of these Terms and Conditions.

AFFILIATES/AFFILIATED COMPANY any person or business directly or indirectly in control of, or controlled by, or is under common control of any of the PARTIES or which has the ability to direct or cause the direction of the management and policies of a PARTY, whether by contract or otherwise.

ALTCOINOMY Altcoinomy SA Place des Florentins 1 1204 Genève, appointed by RADIX TOKENS (JERSEY) LIMITED to perform CONTRIBUTOR due diligence and to act as

	escrow agent in relation of all contributions/payments made by CONTRIBUTORS pending delivery of the ERC20 RADIX TOKEN to CONTRIBUTORS.
AVAILABLE INFORMATION	the INFORMATION MEMORANDUM, THE DEFI WHITE PAPER, THE CONSENSUS WHITE PAPER, THE ECONOMICS WHITE PAPER, together with all information, technical specifications, economic projections, performance data published by RADIX TOKENS (JERSEY) LIMITED relating to any aspect of the possible value, use, function or operation of the RADIX LEDGER, and/or the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
CONSIDERATION	tokens or other assets (which may include fiat currency) to be exchanged for ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
CONTRIBUTOR/YOU	a person who makes, acquires or contracts to acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or where the context requires undertakes a RADIX TRANSACTION.
ERC20 RADIX TOKEN	a digital artefact to be generated using the ETHEREUM BLOCKCHAIN in ERC20 format (ERC20 RADIX TOKEN) on the ETHEREUM BLOCKCHAIN ahead of the launch of the RADIX LEDGER with the purpose of ensuring broad adoption and distribution of tokens which shall be exchangeable for a RADIX (XRD) TOKEN prior to the launch of the RADIX LEDGER (which will use a proof of stake validation mechanism).
EXCHANGE	a third-party business or decentralised exchange that facilitates the trading/exchange of cryptocurrencies or digital assets for other assets, such as conventional fiat money or other digital currencies.
EXCHANGE TOKEN	cryptographic token which may be used on a distributed ledger as a medium of exchange.
INTELLECTUAL PROPERTY	patents, utility models, rights to inventions, supplementary protection certificates, copyright and neighbouring and related rights, moral rights, trademarks and service marks, business names and domain names, rights in get-up, goodwill and the right to sue for passing off or unfair competition, rights in designs, database rights, rights to use, and protect the confidentiality of, confidential information (including know-how and trade secrets), semiconductor topography rights, and all other intellectual property rights, in each case whether registered or unregistered and including all applications and rights to apply for and be granted, renewals or extensions of, and rights to claim priority from, such rights and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world.
NODE RUNNER/STAKING NODE	a person who stakes all or part of their holding of RADIX TOKENS for the time being in order to participate in the

	proof of stake consensus validation process and in relation to which fees may be received in RADIX TOKENS.
NOTICE	(where the context requires) means a notification given to the other PARTY in accordance with of these Terms and Conditions (Clause 13).
PARTIES	RADIX TOKENS (JERSEY) LIMITED and you/the CONTRIBUTOR individually or collectively as the context requires.
PERSON	a natural person, corporate or unincorporated body (whether having separate legal personality).
RADIX ETHEREUM BLOCK CHAIN	the distributed ledger and smart contract upon which the ERC20 RADIX TOKENS reside/operate.
RADIX TRADE MARKS	all registered and unregistered marks and devices which are owned by or licensed to RADIX TOKENS (JERSEY) LIMITED including the word RADIX in all jurisdictions and for all uses and variations, including the use in relation to the RADIX LEDGER, the ERC20 RADIX TOKEN, XRD TOKEN, RADIX TOKEN and in relation to cryptographic tokens, decentralised finance and all services and product relating thereto.
RADIX TOKEN	RADIX (XRD) TOKEN and/or the ERC20 RADIX TOKEN collectively or individually as the context requires as generated by RADIX TOKENS (JERSEY) LIMITED for use in relation the RADIX LEDGER.
RADIX TOKENS (JERSEY) LIMITED	a limited liability company incorporated in Jersey with registration number 132555 and whose registered office is at: First Floor La Chasse Chambers Ten La Chasse Jersey JE2 4UE.
RADIX LEDGER	a trust-less peer to peer network capable of determining the order of events within a distributed system, agnostic to its operating environment based on a structured, shardable architecture which is instantiated by RADIX TOKENS (JERSEY) LIMITED consistent with standards established or approved by the RADIX TOKENS (JERSEY) LIMITED.
RADIX PROTOCOL	the core code that forms the underlying layer of software used by the RADIX LEDGER establishing the rules that allow entities to communicate, transmit and record information and data across the RADIX LEDGER and perform transactions.
RADIX TOKEN HOLDER/USER	a PERSON having de-facto control of a RADIX WALLET also referred to as a USER.
RADIX TRANSACTION FEES	the fees in RADIX TOKENS payable by USERS and required by the RADIX PROTOCOL to perform transactions on the RADIX LEDGER.
RADIX TRANSACTION	the transmission by a RADIX TOKEN HOLDER using the RADIX LEDGER, including the transmission or receipt by you of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS to any RADIX WALLET and including future

	trading of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS on any exchange or market (regulated, unregulated, primary or secondary).
RADIX WALLET	any software or code which is configured to hold, receive, or transmit ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
RADIX WALLET ADDRESS	a publicly available on-ledger unique alphanumeric string that identifies the control, location, and amount of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS on a public RADIX LEDGER.
RADIX (XRD) TOKEN	a unique digital artefact generated by publication dispersal and adoption of the software which will implement the RADIX LEDGER, and which may be used as notional payment of RADIX TRANSACTION FEES and NODE STAKING and/or as an EXCHANGE TOKEN.
RESTRICTED PERSON	any person, firm, company, partnership, trust, corporation, entity, government, state or agency of a state or any other incorporated or unincorporated body or association, association or partnership (whether or not having separate legal personality) established domiciled or resident in a RESTRICTED TERRITORY and who is restricted by law or regulation from receiving the AVAILABLE INFORMATION; or acquiring holding buying or selling the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
RESTRICTED TERRITORY	those territories set out at Appendix 1 together with any further territories which may be designated as subject to sanctions or other restrictions which prevent its nationals or residents from participating in the sale/purchase holding use or transmission of cryptographic tokens and/or which may be designated by RADIX TOKENS (JERSEY) LIMITED from time to time.
US PERSON(S)	a citizen, resident of, or a person located or domiciled in the United States of America, including its states, territories or the District of Columbia, or any entity, including, without limitation, any corporation or partnership created or organized in or under the laws of the United States of America, any state or territory thereof or the District of Columbia.
USER	any person lawfully in possession of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS as the context requires.
VAT	value added tax or equivalent purchase tax in any relevant country or jurisdiction.

4. BACKGROUND

- 4.1 The RADIX LEDGER will be activated when the relevant software is adopted by USERS and NODE RUNNERS (STAKING NODES) who implement and activate the RADIX LEDGER.

- 4.2 The initial state of the RADIX LEDGER including the genesis atom (which implements the ERC20 RADIX TOKEN) will be comprised in the configuration file as adopted which will define the number and nature of ERC20 RADIX TOKENS and initial allocation of tokens to wallet addresses that will be disseminated by activation of the RADIX ETHEREUM BLOCKCHAIN.
- 4.3 Any functionality or characteristic of ERC20 RADIX TOKENS that enables the ERC20 RADIX TOKENS to be used or transferred or exchanged for RADIX (XRD) TOKENS provided by the programming and configuration of the software underpinning the RADIX LEDGER and the RADIX PROTOCOL to be adopted by USERS, NODE RUNNERS or others who may use, download and run any node runner client software.
- 4.4 RADIX TOKENS (JERSEY) LIMITED is not the author of the software underpinning the RADIX LEDGER or the RADIX PROTOCOL and is not responsible for the performance or functioning of that software.
- 4.5 RADIX TOKENS (JERSEY) LIMITED is authorised to initiate the RADIX ETHEREUM BLOCKCHAIN and the RADIX LEDGER and initiate the transfer of the ERC20 RADIX TOKENS.
- 4.6 RADIX TOKENS (JERSEY) LIMITED does not have any right, power or control over the publication, use, adoption or operation of the open source software that underpins the RADIX LEDGER, RADIX PROTOCOL or the node client software.
- 4.7 The initial state of the RADIX LEDGER will be created when a protocol which is compliant with the RADIX LEDGER is adopted by those who choose to perform the function of a NODE RUNNER (Staking Nodes). The state of the RADIX LEDGER when distributed will recognise and activate the RADIX (XRD) TOKENS.
- 4.8 RADIX TOKENS (JERSEY) LIMITED gives NO warranty as to the use, value, function, or legal nature of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
- 4.9 By downloading a RADIX WALLET, acquiring ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, entering or instigating a RADIX TRANSACTION you accept and agree to be bound by these Terms and Conditions.
- 4.10 You will be allocated the number of ERC20 RADIX TOKENS which are calculated by reference to the USDC or ETH tokens which you provide as CONSIDERATION.
- 4.11 ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS are not redeemable.

5. ACQUISITION OF ERC20 RADIX TOKENS AND RADIX (XRD) TOKENS

- 5.1 By clicking on the accept button/tick box you are entering into an irrevocable conditional purchase agreement, which is formed between you (and your successors in title) and RADIX TOKENS (JERSEY) LIMITED for the purchase of the number of ERC20 RADIX TOKENS for which you have subscribed and provided CONSIDERATION.
- 5.2 These Terms and Conditions incorporate the AVAILABLE INFORMATION (together, this AGREEMENT).
- 5.3 A final agreement will be created when the following conditions have been complied with:
 - (a) You have provided your agreement to be bound by these Terms and Conditions indicated by your “click” on the acceptance tick box/button at the foot of these Terms and Conditions;
 - (b) You have agreed to comply with all terms and conditions of ALTCOINOMY and fully and honestly complied with all requests for information and disclosure;
 - (c) ALTCOINOMY have confirmed that you have complied and been approved for all due diligence and anti-money laundering requirements and/or qualification;
 - (d) You have acknowledged by clicking the acceptance tick box at the foot of these Terms and Conditions that you have read, understood and agreed to continue with the

acquisition of ERC20 RADIX TOKENS in full knowledge of the risk warnings, the information memorandum, the white papers, and all AVAILABLE INFORMATION and on the basis of these Terms and Conditions; and

- (e) after confirmation by clicking the acceptance tick box at the foot of these Terms and Conditions that you have reaffirmed your agreement to these Terms and Conditions, the information memorandum, the white papers, and the risk warnings.
- 5.4 Upon completion of the formalities at Clause 5.3, a binding irrevocable legal agreement will be concluded between you and RADIX TOKENS (JERSEY) LIMITED which shall incorporate these Terms and Conditions and all documents referred to herein.
- 5.5 The conclusion of a binding agreement in accordance with Clause 5.4 shall:
- (a) act as authority for RADIX TOKENS (JERSEY) LIMITED to initiate the transfer to the RADIX WALLET address identified by you of the number of ERC20 RADIX TOKENS that you have contracted to purchase; and
 - (b) constitute irrevocable authority by you to release all funds/ CONSIDERATION held in any escrow account or wallet to RADIX TOKENS (JERSEY) LIMITED.
- 5.6 The initiation of the transfer to the RADIX WALLET identified by you to receive the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS of the appropriate number of ERC20 RADIX TOKENS shall constitute complete performance of the obligations of RADIX TOKENS (JERSEY) LIMITED and all risk and title to the ERC20 RADIX TOKENS and/or shall pass to you on initiation of the transfer process.

6. NO SALES TO US PERSONS

- 6.1 Neither the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS are offered, nor sold or distributed to any US PERSONS. RADIX TOKENS (JERSEY) LIMITED does not solicit US PERSONS to acquire the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
- 6.2 US PERSONS shall not subscribe for, purchase, or attempt to purchase or acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS directly or indirectly.
- 6.3 It is a breach of this Agreement to enter into this Agreement as agent for a US PERSON or with the intent of re-supplying a US PERSON.
- 6.4 RADIX TOKENS (JERSEY) LIMITED may take all necessary and appropriate actions, in its sole discretion, to invalidate any such agreement, including referral of information to the appropriate authorities.
- 6.5 Any US PERSON who acquires ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or enters this Agreement on an unlawful, unauthorised or fraudulent basis shall be solely liable for, and shall indemnify, defend and hold harmless RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES and their respective past, present and future employees, officers, directors, contractors, consultants, equity holders, suppliers, vendors, service providers, parent companies, subsidiaries, affiliates, agents, representatives, predecessors, successors and assigns against and from any damages, losses, liabilities, costs or expenses of any kind, whether direct or indirect, consequential, compensatory, incidental, actual, exemplary, punitive or special and including, without limitation, any loss of business, revenues or profits.

7. FINANCIAL TERMS OF THIS AGREEMENT

- 7.1 The sale price of the ERC20 RADIX TOKENS shall be \$0.039 per token which shall be payable in:
- (a) USDC EXCHANGE TOKEN (US dollar linked at 1:1); or

- (b) ETHER which shall have the exchange value which is current on Coingecko.com priced at the time indicated by the time stamp when the CONTRIBUTOR transfers ETHER EXCHANGE TOKENS to the wallet of ALTCOINOMY.

7.2 Fiat currency is not accepted.

8. USE OF RADIX TOKEN

- 8.1 RADIX TOKENS (JERSEY) LIMITED grants to USERS a limited revocable license to use the RADIX TRADE MARKS in connection with the lawful use, of the ERC20 RADIX TOKENS and the RADIX (XRD) TOKENS and the creation use and sale of software applications in relation to the RADIX LEDGER
- 8.2 The sole function of the RADIX (XRD) TOKEN will be as a mechanism for the RADIX TOKEN HOLDER to exchange and pay and discharge the RADIX TRANSACTION FEES on the RADIX LEDGER and to enable NODE RUNNERS to provide staking services to the RADIX LEDGER.
- 8.3 You warrant that:
 - (a) you will not acquire any of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS with a view to holding these as a speculative investment; and
 - (b) you are acquiring the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and entering into this Agreement to facilitate the development of the RADIX LEDGER through participation in consensus, validation, and operations on the RADIX LEDGER.
- 8.4 Possession of a RADIX WALLET or an ERC20 RADIX TOKEN or a RADIX (XRD) TOKEN does not entitle you or any successor in title, transferee, or person in possession to:
 - (a) any right, title or interest, dividend, distribution, benefit, or control of RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED or any aspect of the RADIX LEDGER, or the protocol, technology or intellectual property underlying the ERC20 RADIX TOKENS or RADIX (XRD) TOKENS;
 - (b) receive any profits, bonuses, additional tokens (of any kind) or further allocation of tokens;
 - (c) participate in the management, control or direction of any enterprise including without limitation: RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED;
 - (d) any legal or beneficial claim, right, title, or interest in RADIX TOKENS (JERSEY) LIMITED or claim upon the assets of either of RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED;
 - (e) be paid or remunerated or compensated in any way in money or money's worth in respect of any participation in or contribution made to RADIX TOKENS (JERSEY) LIMITED, their AFFILIATES or the RADIX LEDGER; and/or
 - (f) receive any distribution, interest, right or benefit from the winding up, insolvency, reconstruction, or cessation of business by RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED.
- 8.5 The distribution sale, allocation, or possession of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS shall not be construed, interpreted, classified, or treated as conferring on the RADIX TOKEN HOLDER any rights or benefits compatible with any form of:
 - (a) legal or beneficial right, title, interest or ownership in or to the underlying code, software or intellectual property, intangible property or know how comprising the RADIX LEDGER, the RADIX (XRD) TOKEN (as represented by the RADIX LEDGER) or the ERC20 RADIX TOKEN as represented on the ETHEREUM BLOCKCHAIN;
 - (b) the sale of the ERC20 RADIX TOKEN and/or the RADIX (XRD) TOKEN;

- (c) currency or commodity;
 - (d) debentures, stocks, or shares issued by any person or entity whether RADIX TOKENS (JERSEY) LIMITED or any AFFILIATE of RADIX TOKENS (JERSEY) LIMITED or otherwise;
 - (e) rights, options, or derivatives in respect of such debentures, stocks, or shares;
 - (f) rights under a contract for differences or under any other contract, the purpose or pretended purpose of which is to secure a profit or avoid a loss;
 - (g) units in a collective investment scheme;
 - (h) units in a business trust;
 - (i) derivatives of units in a business trust; or
 - (j) any other security or class of securities.
- 8.6 ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS are non-refundable and cannot be cancelled or redeemed.
- 8.7 ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS have no intrinsic value and may have no market value.
- 8.8 YOU agree not sell exchange, deliver, assign or transfer any right, title, interest or possession in or to ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS to any RESTRICTED PERSON nor will you sell, promote or offer for sale nor procure others to sell, offer for sale, deal in or promote the sale transfer, pass possession, purchase or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS in any RESTRICTED TERRITORIES.

9. PERSONAL DATA

You/the CONTRIBUTOR agree to the processing of your personal data received by RADIX TOKENS (JERSEY) LIMITED in accordance with the RADIX DATA PROCESSING TERMS set out at Appendix 2.

10. WARRANTIES BY YOU

10.1 You/the CONTRIBUTOR WARRANT THAT:

- (a) You are:
 - (i) a natural person and that you are over 18 (eighteen) years of age; **and**
 - (ii) you are not a RESTRICTED PERSON; **OR**
- (b) You are:
 - (i) an entity, (if relevant) duly organized, validly existing and of good standing under the laws of your domiciliary jurisdiction and each jurisdiction where you conduct business; and
 - (ii) you are not a RESTRICTED PERSON.

10.2 You warrant that you have obtained independent legal advice in relation to:

- (a) your entitlement to lawfully acquire the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;
- (b) these Terms and Conditions;
- (c) the laws of any territory of which you are a national or resident or where you located prior to or at the time of offering to purchase, acquiring, or receiving the AVAILABLE INFORMATION, and/or any ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;
- (d) conducting any RADIX TRANSACTION; and

- (e) you do not know of any lawful reason why you should not enter into any agreement with RADIX TOKENS (JERSEY) LIMITED for the purchase, use, transfer, or possession of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.

10.3 You warrant that:

- (a) any legal person, including any legal entity, (hereafter PERSON) upon whose behalf you are acting (as disclosed by you) is duly organized and validly existing under the applicable laws of the jurisdiction of its organisation, and that you are duly authorised by such PERSON to act on its behalf and to give all of the undertakings and warranties in these Terms and Conditions on behalf of yourself and any PERSON on whose behalf you are acting;
- (b) you will comply with all laws, regulatory requirements, and rules as are applicable to the acquisition, exchange, ownership, possession, use, sale, purchase, or transmission of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;
- (c) the AVAILABLE INFORMATION, and/or completion of the purchase of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, or trading of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS on any EXCHANGE or market (regulated, unregulated, primary, secondary or otherwise), shall not be construed, interpreted or deemed by you as an indication of the merits, values or qualities of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, or the AVAILABLE INFORMATION;
- (d) you are not acting in any representative capacity as nominee agent or otherwise on behalf of a RESTRICTED PERSON (for tax purposes or otherwise) in connection with your interactions and Agreement with RADIX TOKENS (JERSEY) LIMITED or your offer, ownership, possession, exchange, use, sale or transfer of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;
- (e) you are in receipt of the AVAILABLE INFORMATION and acknowledge that the acquisition, possession or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS may be prohibited or restricted by applicable laws, regulations, or rules in your local jurisdiction;
- (f) to the extent legally possible, you are subject to any restrictions which apply to the purchase, receipt, possession, exchange transmission, or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS in any jurisdiction, you will observe and comply, and continue to observe and comply, with all such laws, regulations and restrictions at your own expense and fully and effectively indemnify and hold safe RADIX TOKENS (JERSEY) LIMITED and each AFFILIATE of RADIX TOKENS (JERSEY) LIMITED in relation to any losses demands or claim resulting from your failure to do so;
- (g) no tokens, consideration or value whatsoever provided by you for the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS is derived from or related to any unlawful activities or constitute the proceeds of crime (in any territory) including but not limited to any use which is or has facilitated money laundering or terrorist financing;
- (h) you will not use, promote, procure, or encourage the use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS to finance, engage in, or otherwise support unlawful activities in any territory, and all payments or transfer of tokens will be made by you only, in your name, lawfully authorised by you, from a digital wallet or bank account in compliance with all applicable local laws, regulations, rules and restrictions as may apply to such payments transfers or exchanges from time to time;
- (i) you are not nor have you ever been, subject to any investigation nor have you received a request for information from any governmental body relating to money laundering corruption or bribery, under any law or statute, nor have you been charged or convicted of being involved in any activity associated with money laundering, terrorist financing, or any other similar anti-corruption or anti bribery statute; and

- (j) you shall promptly and in good faith collaborate with all requests made by RADIX TOKENS (JERSEY) LIMITED and all regulatory authorities in connection with, "know your client" (KYC) and anti-money laundering (AML) policies/ anti-corruption /compliance procedures and make available all information and documents on demand reasonably required by RADIX TOKENS (JERSEY) LIMITED.
- 10.4 You hereby authorise RADIX TOKENS (JERSEY) LIMITED to conduct any enquiries, including with third party providers, in relation to the source of funds or representation of monies used to acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and/or any suspected unlawful use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and you waive any privacy or other similar right which would prevent RADIX TOKENS (JERSEY) LIMITED from undertaking such enquiries.
- 10.5 You acknowledge and agree that any breach of the warranties given by you pursuant to this Clause 10 entitles RADIX TOKENS (JERSEY) LIMITED to refuse to process any purchase and/or terminate any agreement with immediate effect to acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
- 10.6 The right of termination pursuant to Clause 10 shall be in addition to any other remedy RADIX TOKENS (JERSEY) LIMITED may have including restricting access to or use of the RADIX LEDGER or denying a USER the right to or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS which may include a right to demand the return and or (where applicable) the destruction of any ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS in your possession custody or control.
- 10.7 In the event of any question arising as regards the source, provenance or legal status of any tokens or monies or representations of money received by or on behalf RADIX TOKENS (JERSEY) LIMITED, RADIX TOKENS (JERSEY) LIMITED may withhold restitution of any tokens or payment (in whatever form) deposited or paid to ALTCOINOMY and/or RADIX TOKENS (JERSEY) LIMITED, and RADIX TOKENS (JERSEY) LIMITED shall be entitled to withhold the same without liability until the provenance, legal status or ownership of the same has been established to the satisfaction of RADIX TOKENS (JERSEY) LIMITED, which may include final determination by a court of law and/or a judgment recognised by the courts of Jersey.
- 10.8 You hereby agree to indemnify and hold harmless RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES against all losses, claims, costs, demands and awards by you and/or any third-party in relation to and including the costs of bringing or defending any proceedings arising out of or relating to the provenance, ownership, legal status, source of wealth money, tokens or representations of money received or receivable by RADIX TOKENS (JERSEY) LIMITED.

11. LIMITATION OF LIABILITY RADIX TOKENS (JERSEY) LIMITED

- 11.1 RADIX TOKENS (JERSEY) LIMITED do not make or purport to make any warranty or give any assurance that the ERC20 RADIX TOKEN and or the RADIX (XRD) TOKEN will function as intended or for any particular purpose required by you.
- 11.2 RADIX TOKENS (JERSEY) LIMITED hereby excludes liability for all and any representation, warranty or undertaking in any form whatsoever, whether express or implied, made to any entity or person, (including without limitation any actual or prospective RADIX TOKEN HOLDER) including any representation, warranty or undertaking in relation to the use, value or other characteristics of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS, and/or the RADIX LEDGER save for the representations, warranties and undertakings made in the INFORMATION MEMORANDUM.
- 11.3 Neither RADIX TOKENS (JERSEY) LIMITED nor its AFFILIATES, nor any current or former employees, officers, directors, partners, trustees, representatives, agents, advisors, contractors or volunteers shall in any event be liable for any indirect, special, incidental, consequential or other losses of any kind, in tort, contract or otherwise (including but not limited to loss of revenue, income or profits, or loss of use or data, or loss of reputation, or

loss of any economic or other opportunity of whatsoever nature or howsoever arising), arising out of or in connection with (without limitation):

- (a) any acceptance of, or reliance on the AVAILABLE INFORMATION or any part thereof except the INFORMATION MEMORANDUM, including (but not limited to) mistakes or errors in code, text, or images included in any of the AVAILABLE INFORMATION;
- (b) the use, misuse, or unavailability of the RADIX LEDGER, its functionality or any performance or operation of any code or protocol or validation methodology caused by bugs or programming or logic errors or otherwise;
- (c) the offering, purchase, holding, use, sale, or transmission of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS;
- (d) any failure in a transmission or loss of any RADIX TOKEN due to communication errors, bugs, hacks or fault in the RADIX ETHEREUM BLOCKCHAIN, RADIX LEDGER or any RADIX WALLET or any communication system, software or apparatus including but not limited to losses caused by errors in holding or transmitting ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS by the RADIX TOKEN HOLDER;
- (e) breaches of security including hacker attacks, loss or disclosure of password, loss of private key, unauthorised use or misuse of such passwords or keys;
- (f) losses attributable to any failure or error in any computer network, telecommunications system or protocol or the receipt by RADIX TOKENS (JERSEY) LIMITED of inaccurate wallet information or other information resulting in the misdirection or loss of tokens;
- (g) information contained in the AVAILABLE INFORMATION except the INFORMATION MEMORANDUM or any expectation, promise, representation, or warranty arising (or purportedly arising) therefrom;
- (h) losses including loss of anticipated savings or other benefits resulting from changes in the pricing of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or alterations in the RADIX LEDGER (howsoever implemented);
- (i) the pricing of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS on any EXCHANGE in any jurisdiction or market (regulated, unregulated, primary, secondary, or otherwise);
- (j) the RADIX TOKEN HOLDERS loss of a private key to a wallet or other secure custody device holding the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS; and/or
- (k) unless caused by any such person's fraud, gross negligence, bad faith and/or wilful default.

12. MISCELLANEOUS

- 12.1 RADIX TOKENS (JERSEY) LIMITED reserves the right to refuse any requests to purchase ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or to terminate any contract of purchase at any time in its sole discretion.
- 12.2 Other CONTRIBUTORS may receive more tokens for the same CONSIDERATION amount.
- 12.3 ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS may be sold under other contracts that contain different terms, for less CONSIDERATION or for different CONSIDERATION.
- 12.4 RADIX TOKENS (JERSEY) LIMITED reserves the right to change these Terms and Conditions upon notice to you which will be accepted by your continued participation in the sale, use, transfer or exchange of any RADIX TOKENS. Notice may be given by posting new terms and conditions on the RADIX TOKENS (JERSEY) LIMITED website (radixtokens.com/terms/erc20terms).

- 12.5 You acknowledge that RADIX TOKENS (JERSEY) LIMITED may publish a new version of the RADIX LEDGER and related software at any time and that RADIX TOKENS (JERSEY) LIMITED is not responsible for the testing, use or adoption of the RADIX LEDGER or any variation or version therefore nor for the dissemination distribution or adoption thereof.
- 12.6 Save as provided by Clause 10.4 these Terms and Conditions may not be varied nor any rights accruing to either PARTY waived except where such variation or waiver is contained in a single physical document in writing signed by all PARTIES affected. Writing in this context shall not include e-mail but may include documents completed using electronic signatures.

13. GIVING OF NOTICE

- 13.1 A notice, or communication, given to a party under or in connection with this Agreement shall be in writing and sent to the party at the postal address or both email addresses given in this Agreement with copy to acarter-silk@keystonelaw.co.uk or as otherwise notified in writing to the other party.
- 13.2 This Clause 13 sets out the delivery methods for sending a NOTICE to a party under this Agreement and, for each delivery methods, the date and time when the NOTICE is deemed to have been received or given (provided that all other requirements of this clause have been satisfied):
- (a) if delivered by hand, on signature of a delivery receipt or at the time the NOTICE is left at the address;
 - (b) if sent by pre-paid first-class post at the time recorded by the delivery service;
 - (c) if sent by email, at the time of transmission (provided that no non-delivery notification is received by the sender);
- 13.3 If deemed receipt under Clause 13.2 should occur outside business hours in the place of receipt, it shall be deferred until business hours resume which means 9.00 am to 5.00 pm Monday to Friday on a day that is not a public holiday in the place of receipt.
- 13.4 This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

14. TAX

- 14.1 You acknowledge, understand and agree that you are solely responsible for compliance with all taxation obligations arising out of or related to the purchase, receipt, sale transmission holding or use of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and RADIX TOKENS (JERSEY) LIMITED bears no liability or responsibility with respect of any tax consequences relating thereto. You fully and effectively indemnify and hold safe RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES in relation to all such liability.
- 14.2 The CONSIDERATION payable by you in respect of your acquisition of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS is exclusive of amounts in respect of VAT and all forms of purchase tax.
- 14.3 In the event that the sale or disposition of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS is subject to GST/ Purchase Tax or VAT (or other equivalent taxes in Jersey or elsewhere) RADIX TOKENS (JERSEY) LIMITED shall be entitled to deliver a valid VAT (or similar tax invoice) invoice to you and you will be obliged to pay additional amounts in respect of such tax as shall be payable in respect of the sale, purchase supply or exchange of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.
- 14.4 You will be responsible for the payment of all levies, import duties, capital and all other taxes charges and fees arising out of your acquisition, possession, use or disposal of the ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS.

15. THIRD PARTY RIGHTS

The PARTIES do not intend that any provision of this Agreement should be enforceable by any PERSON who is not a PARTY to this Agreement.

16. ENTIRE AGREEMENT

- 16.1 Save that all of the documents referred to herein shall be deemed to be incorporated by reference, these Terms and Conditions constitute the entire agreement between the PARTIES and supersede and extinguish all previous agreements, promises, assurances, warranties, representations and understandings between the PARTIES, whether written or oral, relating to its subject matter.
- 16.2 Each PARTY agrees that it shall have no remedy in respect of any statement, representation, assurance, or warranty (whether made innocently or negligently) where such statement, representation, assurance, or warranty is not set out in these Terms and Conditions.
- 16.3 Each PARTY agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misstatement based on any statement in these Terms and Conditions. Nothing in this Clause shall operate to limit or exclude any liability for fraud (including fraudulent misrepresentation).

17. LAW AND JURISDICTION

- 17.1 Each PARTY (which shall include successors in title) irrevocably agrees on behalf of itself, its assignees, and its successors in title this Agreement shall be governed and construed in accordance with laws of Jersey.
- 17.2 Any dispute or difference arising out of or in connection with:
- (a) this Agreement, including the formation of this Agreement; and
 - (b) including without limitation any difference or dispute arising from or relating to any claim to a right to possession, use, transfer, ownership, or any dispute arising from or related to any transaction or exchange conducted using or any ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS,
- shall be resolved by arbitration in London, England before a single arbitrator in English in accordance with the rules of the London International Court of Arbitration
- 17.3 The situs of all tangible and intangible property and/or all right of title and interest in any chose in action in or related to ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS and all legal and equitable rights title and interest, debts and/or claims, and causes of action arising from or related to the use, transfer, possession or control of any ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS shall be Jersey.
- 17.4 The situs of debts, and the deemed situs of all wallets, tokens, obligations and causes of action arising out of this Agreement and the use, transmission, sale, exchange, possession, use or misuse of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS shall be Jersey.
- 17.5 This Agreement shall be deemed to have been created and performed in Jersey and all transfers and exchanges shall be deemed to occur in Jersey.
- 17.6 All transactions and exchange or transmission of ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS including the operation, use and functioning of the RADIX LEDGER and performance of RADIX TRANSACTIONS shall be deemed to take place in Jersey and all transaction contracts, on ledger actions, and the actions of NODE RUNNERS including RADIX TRANSACTIONS shall be deemed to made and performed in Jersey.
- 17.7 All fees and payments due to RADIX TOKENS (JERSEY) LIMITED shall be payable and recoverable in Jersey which shall be the situs of debts due to RADIX TOKENS (JERSEY) LIMITED together with and including all payments debts and obligation due or alleged to be due from or by RADIX TOKENS (JERSEY) LIMITED.

- 17.8 No recognition or registration of any judgment, order or award made by a court other than in accordance with this Agreement shall be sought to be recognised by the courts of Jersey nor any other jurisdiction nor enforceable by separate action.
- 17.9 All operation of conflict of laws is excluded.

APPENDIX 1. RESTRICTED TERRITORIES

1. Excluded Jurisdictions:

- USA

2. Countries targeted by OFAC's extensive sanctions programs:

- Crimea Region of Ukraine
- Cuba
- Iran
- North Korea
- Sudan
- Syria

3. High Risk Jurisdictions:

- | | |
|--------------------------------|-----------------------|
| - Afghanistan | - Somalia |
| - Angola | - Madagascar |
| - Azerbaijan | - Mozambique |
| - Bahamas | - Nicaragua |
| - Bosnia Herzegovina | - Pakistan |
| - Botswana | - Serbia |
| - Burundi | - South Sudan |
| - Cambodia | - Sri Lanka |
| - Cameroon | - Sudan |
| - Chad | - Syria |
| - Congo | - Tajikistan |
| - Democratic Republic of Congo | - Trinidad and Tobago |
| - Ghana | - Tunisia |
| - Guinea | - Turkmenistan |
| - Guinea-Bissau | - Uganda |
| - Eritrea | - Uzbekistan |
| - Ethiopia | - Vanuatu |
| - Haiti | - Venezuela |
| - Iraq | - Yemen |
| - Laos | - Zimbabwe |
| - Libya | |

4. For the following countries, only accredited investors shall be accepted:

- | | |
|-------------|------------------------------|
| - Australia | - People's Republic of China |
| - Japan | - South Korea |
| - Canada | |

APPENDIX 2. RADIX DATA PROCESSING TERMS

1. DEFINITIONS AND INTERPRETATION

1.1 In this Schedule:

Complaint	means a complaint or request (other than a Data Subject Request) relating to either party's obligations under Data Protection Laws relevant to this Agreement and/or the processing of any of the Personal Data, including any compensation claim from a Data Subject or any notice, investigation or other action from a Data Protection Supervisory Authority relating to the foregoing (and Complainant means the Data Protection Supervisory Authority, Data Subject or other person initiating or conducting a Complaint);
Contributor	means a person who makes, acquires or contracts to acquire ERC20 RADIX TOKENS and/or RADIX (XRD) TOKENS or where the context requires undertakes a Radix transaction;
Controller	has the meaning given in applicable Data Protection Laws;
Data Protection Laws	means, as applicable to either party: a. the GDPR; b. the Data Protection Act 2018; c. Jersey DP Laws; d. the Directive 2002/58/EC (e-Privacy Directive) and/or the Privacy and Electronic Communications (EC Directive) Regulations 2003; e. any other applicable law relating to the processing, privacy and/or use of Personal Data, as applicable to either party; f. any laws which implement any such laws; and g. any laws that replace, extend, re-enact, consolidate, or amend any of the foregoing;
Data Protection Supervisory Authority	means any regulator, authority, or body responsible for administering Data Protection Laws;
Data Subject	has the meaning given in applicable Data Protection Laws from time to time;
Data Subject Request	means a request made by a Data Subject to exercise any right(s) of Data Subjects under Chapter III of the GDPR or under any similar Data Protection Laws in relation to any of the Personal Data or concerning the processing of such data;

Disclosing Party	means YOU / the CONTRIBUTOR;
GDPR	means the General Data Protection Regulation, Regulation (EU) 2016/679;
Lawful Safeguards	means such legally enforceable mechanism(s) for transfers of the Personal Data as may be permitted under Data Protection Laws from time to time;
Permitted Lawful Basis	means the following lawful bases for processing Personal Data, as set out in Article 6(1) GDPR: (a) the Data Subject has given consent to the processing of his or her Personal Data for one or more specific purposes; (b) processing is necessary for the performance of a contract to which the Data Subject is party or in order to take steps at the request of the Data Subject prior to entering into a contract; (c) processing is necessary for compliance with a legal obligation to which the Controllers are subject;
Permitted Purpose	means the: (i) processing of Contributor's Personal Data in line with the requirements set out in the AMLA and the rules and regulations of VQF; (ii) collection of payments made by the Contributors, (iii) initiation of the smart-contract-system which underpins the ERC20 Radix Ethereum ledger and/or the Radix ledger; (iv) maintenance and development and promotion of the ERC20 Radix Ethereum ledger and or the Radix ledger; (v) ensuring the security of the Radix Ledger; and (vi) matters relating to and/or reasonably accidental to the above;
Permitted Recipients	means the Receiving Party's' employees and contractors who need access to the Personal Data for the Permitted Purpose;
Personal Data	has the meaning given in applicable Data Protection Laws from time to time;
Personal Data Breach	has the meaning given in the GDPR;
Processing	has the meaning given in applicable Data Protection Laws from time to time (and related expressions, including process , processed and processes shall be construed accordingly);
Receiving Party	means RADIX TOKENS (JERSEY) LIMITED and its AFFILIATES;
Personal Data	means Personal Data received by the Receiving Party from or on behalf of the Disclosing Party and not

directly provided by Contributors to Receiving Party directly or via the Altcoinomy Onboarding Platform, or otherwise made available by the Receiving Party for the Permitted Purpose.

2. STATUS OF THIS SCHEDULE AND THE PARTIES

RADIX TOKENS (JERSEY) LIMITED shall be a Controller of the Personal Data.

3. COMPLIANCE WITH DATA PROTECTION LAWS

The Receiving Party shall always comply with all Data Protection Laws in connection with the exercise and performance of its respective rights and obligations under this Agreement and the processing of the Personal Data. This Schedule allocates certain rights and responsibilities among the parties as enforceable contractual obligations between themselves, however nothing in this Schedule is intended to limit or exclude either party's responsibilities or liabilities under Data Protection Laws.

4. OBLIGATIONS ON RECEIVING PARTY

4.1 The Receiving Party shall ensure that:

- (a) it shall undertake all processing of the Personal Data only for the Permitted Purpose in accordance with this Agreement and in all respects in accordance with Data Protection Laws;
- (b) it shall undertake processing of the Personal Data only to the extent consistent with the Permitted Lawful Basis;
- (c) the essence of the arrangements in this Schedule are made available to each Data Subject;
- (d) it shall not by any act or omission cause the Disclosing Party (or any other person) to be in breach of any Data Protection Laws; and
- (e) it shall promptly (and in any event within 3 Business Days) on request provide the Disclosing Party with: (a) all copies of all notices, records and information necessary to demonstrate its compliance with this Schedule; and (b) all records referred to in paragraph 9.

5. TECHNICAL AND ORGANISATIONAL MEASURES

5.1 The Receiving Party shall always:

- (a) put in place and maintain appropriate technical and organisational measures to ensure the protection of the rights of Data Subjects under Data Protection Laws and as otherwise required to meet the requirements of both parties under all Data Protection Laws; and
- (b) implement and maintain appropriate technical and organisational measures to protect the Personal Data against accidental, unauthorised, or unlawful destruction, loss, alteration, disclosure, or access.

5.2 The Receiving Party shall ensure the processing of the Personal Data shall be limited to the authorised personnel of the Receiving Party or of a Permitted Recipient that:

- (a) need to process it for the Permitted Purpose in accordance with this Agreement;
- (b) are reliable and adequately trained on compliance with all Data Protection Laws and this Schedule; and
- (c) are subject to (and comply with) a binding written contractual obligation to keep the Personal Data confidential.

6. DISCLOSURES TO PERMITTED RECIPIENTS

- 6.1 The Receiving Party shall be liable to the Disclosing Party for all acts and omissions of each of the Permitted Recipients as if they were the acts and omissions of the Receiving Party. Each obligation in this Schedule on the Receiving Party to do, or refrain from doing, anything shall include an obligation on the Receiving Party to ensure all Permitted Recipients do, or refrain from doing, such thing.
- 6.2 The Receiving Party shall not engage nor permit any staff or third parties other than the Permitted Recipients to carry out any processing of any Personal Data. The Receiving Party shall ensure:
- (a) that all processing by Permitted Recipients is conducted in a manner consistent with the Permitted Lawful Basis, the Permitted Purpose, the Receiving Party's obligations under this Agreement and the restrictions on processing imposed on the Receiving Party under this Agreement; and
 - (b) without prejudice to the above, that each of the Permitted Recipients (other than the employees of a Permitted Recipient or the Receiving Party) carrying out any processing of the Personal Data is subject to a binding written agreement regulating its processing of the Personal Data which complies in all respects with the requirements of Data Protection Laws.

7. INTERNATIONAL TRANSFERS

- 7.1 The Receiving Party shall not transfer the Personal Data to any country outside the European Economic Area or to any international organisation (as defined in the GDPR) without the Disclosing Party's prior written consent.
- 7.2 If the Disclosing Party consents to the transfer of the Personal Data to any country outside the European Economic Area or to any International Organisation, the Receiving Party shall ensure that such transfer (and any onward transfer):
- (a) is pursuant to a written contract, including equivalent obligations on the recipient in respect of the Personal Data as apply to the Receiving Party under this Agreement;
 - (b) is affected by way of Lawful Safeguards and, where practicable, the form of these shall be subject to the Disclosing Party's prior written approval; and
 - (c) otherwise complies with all Data Protection Laws.

8. DATA SUBJECT REQUESTS, PERSONAL DATA BREACHES AND COMPLAINTS

- 8.1 The Receiving Party shall promptly (and in any event within 24 hours) notify the Disclosing Party if the Receiving Party suspects or becomes aware of any actual or threatened occurrence of any Personal Data Breach in respect of any Personal Data. The Receiving Party shall promptly (and in any event within 24 hours) provide all such assistance and information as the Disclosing Party requires to report any actual or suspected Personal Data Breach to a Data Protection Supervisory Authority and to notify affected Data Subjects under Data Protection Laws.
- 8.2 The Receiving Party shall promptly (and, in any event, within 1 Business Day of receipt) inform the Disclosing Party if it receives any Complaint or Data Subject Request. When receiving and responding to a Data Subject Request or a Complaint the Receiving Party shall consult in advance with the Disclosing Party and promptly comply with the Disclosing Party's instructions (if any).
- 8.3 Subject to the remainder of this Schedule, as between the parties, responsibility for compliance with and responding to:
- (a) any Data Subject Request falls on the party which first received such Data Subject Request;

- (b) any Complaint falls on the party which receives the Complaint from a Complainant;
- (c) each party's respective obligations in respect of any Personal Data Breach (including notification of the Data Protection Supervisory Authority and/or Data Subject(s)) impacting or relating to any Personal Data in the possession or control of the Receiving Party (or any third party with whom it has shared such data) falls on the Receiving Party; and
- (d) each Party's respective obligations in respect of any other obligation under Data Protection Laws (including any obligation to notify the Data Protection Supervisory Authority and/or Data Subject(s) of any other Personal Data Breach) falls on each party subject to such obligation(s).

8.4 Each party shall promptly co-operate with and provide reasonable assistance, information, and records to the other to assist each party with their respective compliance with Data Protection Laws and in relation to all Complaints and Data Subject Requests.

8.5 The Disclosing Party's obligations under paragraphs 8.3 and 8.4 shall be performed at the Receiving Party's expense, except to the extent that the circumstances giving rise to such obligation arose out of any breach by the Disclosing Party of its obligations under this Agreement.

9. RECORDS

9.1 The Receiving Party shall maintain complete, accurate and up to date written records of all of its processing of the Personal Data and as necessary to demonstrate its compliance with this Schedule (including the accountability and record keeping requirements of Data Protection Laws) and such other information as the Disclosing Party may reasonably require from time to time.

9.2 The Receiving Party shall promptly make available to the Disclosing Party such information as is required to demonstrate the Receiving Party's compliance with its obligations under this Schedule and Data Protection Laws and allow for, permit and contribute to audits, including inspections, by the Disclosing Party (or another auditor mandated by the Disclosing Party) for this purpose at the Disclosing Party's request from time to time. The Receiving Party shall provide (or procure) access to all relevant premises, systems, personnel and records during normal business hours for the purposes of each such audit or inspection upon reasonable prior notice (not being more than 5 Business Days) and provide and procure all further reasonable co-operation, access and assistance in relation to any such audit or inspection.

10. RETENTION

10.1 Except as required by applicable law the Receiving Party shall:

- (a) process each part of the Personal Data for no longer than such processing is necessary for the Permitted Purpose and compliant with this Schedule and all Data Protection Laws and in any event cease to process each part of the Personal Data on the earlier of termination or expiry of this Agreement; and
- (b) immediately confidentially, irrecoverably, and securely destroy or dispose of all Personal Data (and all copies) in its possession or control that can no longer be processed in accordance with paragraph 10.1(a).

11. KEY CONTACT

11.1 The parties wish to record for reference that the representative within their organisation with overall internal responsibility for ensuring the respective party's compliance with its obligations under this Schedule is Lindsay Bracegirdle who can be contacted at lindsay@CavendishJersey.com, with a copy to: Stacey Williams at stacey@radixdlt.com, and Leroy Margolis at leroy@radixdlt.com (in the case of the Disclosing Party).

11.2 Each party may update details of their representative referred to in this paragraph 11 by written notice to the other party, including by email.

12. SURVIVAL

The provisions of this Schedule shall survive termination or expiry of this Agreement and continue for a period of 10 years or until such time as RADIX TOKENS (JERSEY) LIMITED confidentially destroys the Personal Data.